IN THE COURT OF THE HON'BLE THIRD ADDITIONAL DISTRICT AND SESSIONS JUDGE OF COIMBATORE

O.S.NO. 641 OF2020

1. Dr.S.SajeevRangasamy - Plaintiff

-Vs-

1. M/s. Aravind Builders,
   Rep. by its PartnerMr.T.Sivagnanam

2. M/s. Sapphire Shree Shivvas Castle,
   Rep. by its President, Mr.S.T.Sivagnanam

3. M/s. Sapphire Shree Shivvas Castle,
   Rep. by its Secretary, Smt.Kavitha

4. M/s. Sapphire Shree Shivvas Castle,
   Rep. by its Treasurer, Mr.Rajasekar - Defendant Nos.1 to 4

WRITTEN STATEMENT FILED BY THE 1ST DEFENDANT ADOPTED BY DEFENDANT NOS. 2 TO 4

1. The suit is false, frivolous and unsustainable in law and on facts of the case.

2. The plaintiffs are put to strict proof of all the allegations except those that are specifically admitted herein

3. The averments in para III (1) to (5) of the plaint, that the plaintiff alleged to have purchased an undivided share of land under Sale Deed dated 10.02.2014 registered as Doc.No.1016/2014 along with Rectification Deed No.6669/2015 and super built-up area of 3700 sq.ft as per Construction Agreement dated 29.08.2013 in residential complex known as "SAPPHIRE SHIVVAS CASTLE" and that the entire layout was duly approved in LPR(CPN)No.331/2011and accordingly apart from layout of individual sites, a multi-storied apartment in block 'A' and 'B' were constructed and the same was named as Sapphire Shree Shivvas Castle and thereby 60 families including this defendant are living there for the past 7 years in the same campus and that there is a East West Road with 30 feet width and its Eastern boundary connected to layout road which is prime one used by residents therein and the said eastern boundary of the said road has not been used ever since the year

2010 since this defendant blocked the road by constructing a motor room and put up RO plant therein illegally and unjustly and thus, the residents were deprived from their right to use a common road etc., are stoutly and categorically denied as false.

4. The averments in para III (5) of the plaint that the 1st defendant promised to provide amenities to plaintiff and believing the same the plaintiff came forward to purchase individual villa for the agreed price and accordingly the 1st defendant ought to have performed his part of contract and though the 1st defendant delivered possession in last month of 2016, he did not care to provide amenities as promised and whenever demands were made to that effect, the 1st defendant kept on promised to perform his part and thereby no legal action was taken immediately etc., are not admitted as correct.

5. The averments in para III (6) of the plaint the 1st defendant after execution of construction agreement deliberately avoided in completing and handing over the common facilities such as swimming pool, children's play area, club house, gym and garden etc., are stoutly and categorically denied as false. The averments in para III (7) of the plaint that the 1st defendant as a promoter of the project kept the plaintiff in dark regarding the association registration details though he was a member of the association etc., are stoutly and categorically denied as false. The averments in para III (8) of the plaint, that the 1st defendant intentionally dragged the water supply for 24 hours as committed in Sale Agreement as well as in Development Agreement without any valid reasons which caused numerous stress in living in villa peacefully and the averments in para III (9) of the plaint that the defendants are in the habit of abusing and uttering unwarranted harsh language towards the plaintiff when he approaches the 1st defendant for genuine reasons as bonafide member of association and several occasions the plaintiff was humiliated which put him into stress and disturbing his regular activities etc., are stoutly and categorically denied as false

6. the averments in para III (10) of the plaint, the 1st defendant had adopted indifferent approach in collection of monthly maintenance by demanding in cash without accepting bank transfer which caused doubts about functioning of association and also the demand of cash is against Government guidelines which is also against proper accountability and the 1st defendant did not cooperate to provide

common facilities intentionally with total non-cooperative attitude etc., are all stoutly and categorically denied as false.

7. The averments in para III (11) of the plaint, that the 1st defendant has not disclosed the completion of the project or reasons for incompletion though the entire consideration was paid which is total violation and breach of contract and the 1st defendant handed over villa only in last month of 2016 as per Construction Agreement without entire project completed and when the same was questioned by plaintiff, the defendants refused to answer and orally assured the project would be completed in December 2018, but still the incompleted status continued by not providing common facility of water etc., are stoutly and categorically denied as false.

8. The averments in para III (12) of the plaint, that the 1st defendant formulated a group among him and claimed to be association and got it registered etc., but was not made aware to plaintiff and the 1st defendant though received full sale price failed to carry out his obligation with ulterior motive and thereby the plaintiff underwent untold mental agony and hardship due to such violation of essential terms and conditions and the 1st defendant became president of association on later days, and thereafter also he failed to carry out object of association as president etc., are stoutly and categorically denied as false. The averments in para III (14) that the defendants 2 to 4 have not furnished the details regarding association as set out therein etc., are specifically, stoutly and categorically denied as false.

9. The averments in para III (15) of the plaint that the plaintiff did not find any amenities as shown in Construction agreement when compared with DTCP approval and the space marked for amenities as in Construction Agreement such as swimming pool, club house, children park etc., were not handed over to association and the stilt area of apartment has to be used for vehicle parking but without knowledge and consent of plaintiff some constructions were put up there and the approach road to main road has not been provided as per approved plan and in fact, in enterance point the 1st defendant dug up a borewell and also installed RO plant and at present the passage used for ingress and egress from Western point as per approved plan and though defendants 1 and 2 agreed to shift RO plant to the space marked for public purpose but did not so and the completion certificate was not given

to plaintiff by getting it from appropriate authority etc., are stoutly and categorically denied as false.

10. The averments in para III (16) of the plaint that during rainy season, the rain water stagnated in common roads and sometimes sewage pipes got blockage due to improper arrangement, the roads formed over the gated community were thin and substandard and there is no STP as per Government plan, there is no rain harvesting space, lightening arrester, fire extinguisher and intercom facilities which was questioned by plaintiff's wife Karpagavalli and at that time, the 2nd defendant, his wife Kanimozhi along with 4th defendant ill-treated her and illegally confined in office room for an hour by abusing her with unparlimentary words and also threatened with dire consequences etc., are stoutly and categorically denied as false.

11. The averments in para III (17) of the plaint, that there were issues regarding failure to give receipts for collection of monthly maintenance and apprehending danger to plaintiff and his family members, he gave a police complaint on 27.12.2019 with Saravanampatti police station wherein the 1st defendant was warned by Police Inspector and despite it, the 1st defendant did not stop his wrong doings and openly challenged the plaintiff to file cases against him and his wife and put them behind bars and now the defendants altogether by colluding with each other is threatening the plaintiff with dire consequences and as such he sent a legal notice on 30.12.2019 which was replied on 22.01.2020 with false and untenable allegations and the 1st defendant is an influential person with men and money and now for his alleged mental agony caused by defendants 1 and 2 and the averments in para (III) 19 of the plaint that the defendants actions are illegal and unjust and if the defendants are succeeded in their illegal attempts, the entire residential people will be deprived of their legitimate right in using 30 feet width public road and in approved layout plan and it will cause irrepairable hardship and the defendants are capable of executing their threats and at this juncture, defendants 1 to 4 ought to be restrained from doing so or else plaintiffs will be put to hardship which cannot be compensated and thus the present suit has been filed etc., are stoutly and categorically denied as false

12. At the outset, this defendant without prejudice, submits that the suit by filed is untenable in law and on facts of the case. The suit filed by the plaintiff is liable to be rejected for want of cause of action and as such filed an application in I.A.No.7/2021 for rejection of plaint and without prejudice to the same this Written Statement is filed on following grounds.

(i) The plaintiff in his plaint narrated that the entire occupants of individual villas were not been given the common facilities as set out in the plaint. However, the relief sought for in the prayer is totally personal nature as against plaint pleadings. Hence, the pleadings are different from prayer sought for in the plaint and on that ground the suit is liable to be dismissed.

(ii) The plaintiff in plaint para III (4) to para III (19) alleged that the entire occupants of the apartment as well as individual villa holders are suffering from not providing common facilities such as 24 hours drinking water and not handing over completed project of gym, swimming pool, club house, children park to inmates. Not only that, the plaintiff also sought for several facilities from association i.e., defendants 2 to 4 and amenities from builder D1, which are all common cause to be claimed by entire occupants of the apartment and villas in the said Gated community. Though the plaintiff admitted in the plaint that there are 60 families in the said gated community except himself no one else raised the issue and however, the plaint pleadings more particularly in para III (19) of the plaint, the plaintiff alleges that if not the relief is granted, all inmates will be put to hardship. As such, the suit filed in individual capacity for the benefits of all other residents is prohibited under law unless necessary permission is obtained under Order 1 Rule 8 of C.P.C. Hence, the plaintiff has no individual cause of action to file the present suit.

(iii) The plaintiff in his entire pleadings alleged that the disputes are with respect of all common facilities and not pertaining to individual house of plaintiff. Whileso, the present suit claiming a sum of Rs.20,00,000/- as damages for his alleged mental agony and torture when he questioned common facilities etc. are unknown to law and such prayer of suit is liable to be rejected except a suit filed under representative capacity and that to the plaintiff is not entitled for compensation.

(iv) This defendant submits that the plaintiff ought to have filed the suit in a representative capacity by seeking permission from this Honourable Court under Order I Rule 8 of C.P.C. or otherwise the suit is liable to be rejected.

(v) The plaintiff also sought for prayer in para 22 (b) that a permanent injunction restraining the defendants 1 to 4 from trespassing suit property and disturbing plaintiff's peaceful possession and enjoyment thereof and his right of way therein in manner whatsoever and however, there is no pleadings to that effect as to whether the plaintiff's individual house was disturbed. So also, there is no pleadings pertaining to prayer of in para 22 (c) and the prayer in para 22 (d) and (c) which are all common cause which can only be sought for by filing a suit in representative capacity under Order 1 Rule 8. Hence, the suit is liable to be rejected/dismissed.

(vi) This defendant submits that the plaintiff alleges that he questioned the defendants regarding the common cause i.e., to provide amenities as assured by him to inmates for which he was put to mental agony, torture and for which he claims Rs.20,00,000/- as damages for his personal use, which is untenable. Whatever be the relief as per plaint pleadings, the suit ought to have been filed in a representative capacity. Besides, he wanted to enrich unjustly on alleged other's common cause by claiming damages.

(vii) There is no single cause against the defendants pertaining to enjoyment of his own house property i.e., suit property namely UDS purchased by plaintiff and also the apartment bearing plot No.8. Whileso, the prayer sought for pertaining to his house property without pleadings is untenable. However, after filing the plaint rejection application on this ground the plaintiff later on filed an application in I.A.No.8/2023 as if these defendants disturbed plaintiff's peaceful possession and enjoyment of suit property viz., his house property and this defendant filed separate Counter Statement to that effect which may be treated as part and parcel of this Written Statement.

(viii) Without prejudice, the defendants have already provided all the requirements as detailed in the plaint to the entire occupants of apartment as well as individual villas and whileso, except plaintiff all other occupants never ever questioned the same and thus the plaint is vexatious and filed out of personal vengeance. Hence,

there is no cause of action for filing the suit. Besides, his claim is already barred by limitation.

(ix) As per plaint pleadings, the plaintiff alleges that he entered into Construction Agreement on 29.08.2013. He also alleged that the said 30 feet layout road was formed in the year 2010 and more than 50 occupants were not permitted to use the same ever since 2010. If that be the case, the representative suit ought to have been filed within three years from the date of Construction Agreement dated 29.08.2013 and without which the suit has been filed after a period of 7 years. The plaintiff also alleged that the possession was handed over as early in last month of 2016 and in fact the suit is filed on 01.10.2020 and thus entire relief if any is hit under law of Limitation. Hence, the suit is liable to be rejected that the plaintiff is not entitled to claim any of the reliefs as sought for in the plaint.

(x) The petitioners submit that already criminal cases were pending against the plaintiff based on the complaint lodged by 1st defendant in FIR No.74/2017 under Section 294(b) 323 & 506 (2) of IPC and Section 4 of the Prohibition of harassment of Women Act 2002 and FIR number 359/2020 under Section 75 (1) (c), 323 and 506(2) of IPC and having enraged to it, the plaintiff has purposely filed the present suit to harass the defendants herein, without any cause of action. The suit is an abuse of process of law and the plaintiff has not approached this Honourable Court with clean hands. The plaintiff has also circulated defamatory statements against 1st defendant and his family members in whatsapp and with respect of the same, necessary complaint has already been lodged with Cybercrime Police, Coimbatore and the investigation is pending. Thus, in order to make the petitioners to withdraw the criminal complaint, the present suit has been filed without any cause of actions and the petitioners also reserve a right to claim damages to that effect.

15. At this juncture it is pertinent to note here that these respondents have already filed an application in I.A.No.7/2021 under order 7 Rule 11 for rejection of plaint on the ground of want of cause of action. These respondents have specifically raised pleadings in their rejection affidavit that there were no pleadings in the plaint for the relief of injunction pertaining to plaintiffs house property namely the suit property herein. Whereas, having known that the suit will fail on that ground, now the I.A.No.8/2023 has been filed with new cause of actions which are absent in plaint

which is totally unsustainable in law and on facts of the case. Besides similar applications are pending before this hon'ble court and also these defendants have filed petition for rejection of plaint and at this juncture this application is not maintainable without disposal of I.A.No.7/2021. This suit is abuse of process of law and the plaintiff has not approached this hon'ble court with clean hands. Not only that the plaintiff did not at all pay maintenance charges to association herein as admitted by him and as the plaintiff was pressed to pay maintenance, out of personal vengeance such petition was filed. Besides the plaintiff also lodged several false complaint with police which were all closed for want of proof and having failed in his coercive attempt, present suit has been filed to harass these defendants. These defendants vehemently and specifically deny the averments in I.A.No.8/2023 that these defendants cutoff amenities as alleged in the affidavit which is otherwise false. Further, the plaintiff herein filed the petition before RERA authority in petition no. C.NO.15/2022 seeking similar relief by suppressing the pendency of the above suit and thus this suit is not maintainable in law and facts of the case.

Therefore, it is prayed that this Hon'ble Court may be pleased to dismiss the suit with cost and thus render justice.

ADVOCATE FOR 1st DEFENDANT **1st DEFENDANT**

VERIFICATION

I, the Defendant No.1 above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on

1st DEFENDANT

This Written Statement filed by 1st defendant is adopted by Defendant Nos.2 to 4.

ADVOCATE FOR DEFENDANT NOS. 2 TO 4

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- Defendant Nos.1 to 4

WRITTEN STATEMENT FILED BY THE 1ST DEFENDANT ADOPTED BY DEFENDANT NOS. 2 TO 4

Pre.on:

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